

1794(d).) The parties' settlement agreement provides that attorneys' fees and costs shall be determined by motion practice. (Chandy Decl., Ex. 6, ¶ 2.)

Multiplier:

This case involved multiple motions including a demurrer, motions to compel and motion for summary adjudication filed by Defendant. The court shall award a multiplier of 1.1 in recognition of additional involvement required for this case.

Plaintiff's Request for Judicial Notice DENIED.

Plaintiff's Evidentiary Objections the court DECLINES to RULE.

Motion for Attorneys' Fees GRANTED in PART.

Award of Fees \$46,295 + \$4,629.50 (1.1 multiplier) + \$15,588.03 costs for total of \$66,512.53.

OSC re Dismissal continued to September 14, 2026

2.

CASE #	CASE NAME	HEARING NAME
CVPS2303732	WINSTEAD VS 7-ELEVEN, INC., A TEXAS CORPORATION	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT OF ALYSSA WINSTEAD, AN INDIVIDUAL BY YARANA, INC.

Tentative Ruling: Either party may move for summary judgment "if it is contended that the action has no merit or that there is no defense to the action or proceeding." (CCP §437c(a).) Summary judgment is granted when a moving party establishes the right to entry of judgment on a particular cause of action as a matter of law. (CCP 437c(c).) "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (CCP §437c(c).) "In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgement shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (CCP §437c(c).) The court must view such evidence and inferences in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 844.)

The claims asserted against Yarana are negligence/premises and negligent hiring or supervision. A negligence claim requires a duty, breach of duty, causation, and damages. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Premises liability and negligence claims have the same elements. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.) A premises claim is based on the possession of the premises and the property owner/manager's right to control and manage the property. (*Id.*) "But the duty arising from possession and control of property is adherence to the same standard of

care that applies in negligence cases.” (*Id.*) Generally, there is no duty to protect others from the conduct of third parties. (*Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 235.)

On the negligence/premise liability claim, liability is based on Yarana’s alleged failure to prevent Davis’ physical assault on Plaintiff. A business owner only owes a duty to patrons to take reasonable steps to secure against foreseeable criminal acts of third parties that are likely to occur in the absence of the precautionary measures. (*Id.* at 235-237.) “[T]he requisite degree of foreseeability rarely, if ever can be proven in the absence of prior similar incidents of violent crime on the landowner’s premises. To hold otherwise would be to impose an unfair burden on landlords and, in effect, would force landlords to become insurers of public safety, contrary to well-established policy in this state.” (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 678-679.) Absent prior similar incidents or other indicators that the risk of violent criminal assaults in the location is reasonably foreseeable, a business owner is not required to secure their property against such a crime. (*Delgado, supra*, 36 Cal.4th at 239-240.)

Yarana has provided evidence that Yarana has operated the business at the location the assault occurred from December 2019 to 2024. (Declaration of Umar Khan, ¶ 2.) Prior to the incident, Yarana had not received and had no record of receiving any report or complaint about Davis. (*Id.* at ¶ 4.) Yarana also had no prior violent incidents at the location before the incident. (*Id.* at ¶ 5.) Yarana’s President also provides that he had no knowledge of any violent incidents at the location before Yarana’s time as franchisee. (*Id.* at ¶ 5.) This evidence meets Yarana’s burden to establish that it did not breach its duty of care due to lack of prior violent incidents at the location and lack of any notice of Davis’ (a third party) violent behavior.

The last applicable cause of action is for negligent hiring or supervision. An employer can be held liable for negligent hiring of an employee, if it was aware or should have been aware that hiring the employee created a particular risk or hazard and that particular risk or harm materializes. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 815.) “To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor’s propensity to do the bad act.” (*Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 902.) This cause of action alleges that Yarana’s employee was unfit and incompetent and this incompetence and unfitness created a risk to Plaintiff. (Complaint, ¶ 41.)

Yarana has provided evidence that it had no knowledge or information that suggests that the employee in question was unfit, incompetent, or a danger to customers. (Declaration of Umar Kahn, ¶ 8.) There are no records of any complaints from customers, venters, or coworkers regarding the employee’s performance, behavior, or fitness for duty. (*Id.* at ¶ 9.) This is sufficient to meet Yarana’s burden that it lacked knowledge of the unfitness of its employee.

No opposition was submitted on behalf of Plaintiff.

Defendant Yarana’s Motion for Summary Judgment GRANTED.

Yarana to submit a proposed order and judgment within 10 days.

Trial Setting Conference continued to July 22, 2026.